



Performers' Protection Act 1972

1972 CHAPTER 32

An Act to amend the Performers' Protection Acts 1958
and 1963. [29th June 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The enactments specified in column 1 of the Schedule to this Act (being enactments creating the offences under the Performers' Protection Acts 1958 and 1963 broadly described in column 2 of that Schedule) shall each have effect as if the maximum fine which may be imposed on summary conviction of any offence specified in that enactment were a fine not exceeding the amount specified in column 4 of that Schedule instead of a fine not exceeding the amount specified in column 3 of that Schedule.

Increase of
fines under
Performers'
Protection
Acts 1958
and 1963.

2. Section 1 of the Dramatic and Musical Performers' Protection Act 1958 (by which the making of records without the consent of the performers and sales of, and other dealings with, such records are rendered punishable) shall have effect as if after the word "transaction" there were inserted the words "or, on conviction on indictment, to imprisonment for a term not exceeding two years, or to a fine, or to both".

Amendment
of section 1 of
Dramatic
and Musical
Performers'
Protection
Act 1958.
1958 c. 44.

Amendment
of Performers'
Protection
Act 1963.
1963 c. 53.

3. In the Performers' Protection Act 1963 there shall be inserted after section 4 the following section:—

“Offences
by bodies
corporate.

4A. Where an offence under the principal Act or this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.”

Citation,
construction,
commence-
ment and
extent.

4.—(1) This Act may be cited as the Performers' Protection Act 1972, and the Performers' Protection Acts 1958 and 1963 and this Act may be cited together as the Performers' Protection Acts 1958 to 1972.

(2) This Act shall come into operation at the expiration of the period of one month beginning with the date of its passing, but nothing in this Act shall affect the punishment for an offence committed before the commencement of this Act.

(3) It is hereby declared that this Act extends to Northern Ireland.

SCHEDULE

Section 1.

INCREASE OF FINES

(1) Enactment	(2) Description of Offence	(3) Old Maximum Fine	(4) New Maximum Fine
1958 c. 44.			
The Dramatic and Musical Performers' Protection Act 1958—			
Section 1 ...	Making, etc., records without consent of performers.	£2 for each record in respect of which an offence is proved subject to a limit of £50 in respect of any one transaction.	£20 for each record in respect of which an offence is proved subject to a limit of £400 in respect of any one transaction.
Section 2 ...	Making, etc., cinematograph films without consent of performers.	£50	£400
Section 3 ...	Broadcasting without consent of performers.	£50	£400
Section 4 ...	Making or having plates, etc., for making records in contravention of Act.	£50	£400
1963 c. 53.			
The Performers' Protection Act 1963—			
Section 3(1)...	Relaying performances without consent of performers.	£50	£400
Section 4(1)...	Giving consent without authority.	£50	£400